

KMVTECH EDUCATION

INL1 · Module 4

Statehood and territory

Lesson: Title and boundaries

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Statehood requires the Montevideo elements. Territory is the spatial framework of sovereignty. Title may rest on occupation, prescription, cession, conquest (now restricted), or accretion.

Boundaries are fixed by treaty, *uti possidetis*, effective control and adjudication. The principle of territorial integrity is fundamental under the UN Charter and African Union instruments.

Uti possidetis juris freezes colonial administrative borders at independence — critical for African State stability.

- Self-determination coexists uneasily with territorial integrity; external self-determination is exceptional after decolonisation.

2. DETAILED RULES AND APPLICATION

Example: boundary disputes in East Africa often turn on colonial maps, subsequent practice and effective administration. The ICJ and regional mechanisms have resolved several.

Title is historical and legal; effective control strengthens but does not automatically create title against a better claim.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's borders and relations with neighbours are shaped by colonial instruments and post-independence agreements. Internal territorial organisation (districts, kingdoms) is a municipal matter distinct from international title.

Exam trap: treating military occupation as a modern mode of acquiring permanent title, or ignoring uti possidetis in African boundary questions.

Method: identify the claimed mode of title → examine evidence of intention and effectivité → apply any applicable treaty or uti possidetis → consider recognition and acquiescence.

Links to jurisdiction (territorial principle) and use of force (territorial integrity).

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. List the Montevideo criteria.
2. What is uti possidetis juris?
3. Name three historical modes of acquiring territory.
4. Why is territorial integrity fundamental?
5. How does self-determination interact with borders?
6. What evidence supports effectivité?

Exam tip: Title + effectivité + recognition analysis.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.